

24STCV06070 24STCV06070

County: los-angeles

Division: Civil Law and Motion

Department: 731

Hearing date: 2026-09-22

Motion: MOTION FOR SUMMARY ADJUDICATION OF AFFIRMATIVE DEFENSES

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Case Number: 24STCV06070 Hearing Date: September 22, 2026 Dept: 731

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS
ANGELES - CENTRAL DISTRICT

MCMURRAY HENRIKS, LLP, a
California limited liability partnership; and YANA G. HENRIKS, an individual,

Plaintiff,

vs.

CHARMAIN CAMPBELL, an
individual,

Defendants.

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CASE NO: 24STCV06070

[TENTATIVE] ORDER RE: MOTION
FOR SUMMARY ADJUDICATION OF AFFIRMATIVE DEFENSES

Dept. 731

September 22, 2026

8:30 a.m.

Matter No 20

Moving Party: Plaintiff, McMurray Henricks, LLP

Opposing Party: None

Notice: OK

Factual Background

This action arises from an alleged
campaign of extortion and libel following the conclusion of a prior civil
rights representation.

Pleadings

Plaintiffs McMurray Henriks, LLP

and attorney Yana G. Henriks bring claims for Civil Extortion and Libel Per Se against Defendant Charmain Campbell, a certified court reporter and former client, seeking monetary damages and injunctive relief. The Complaint alleges that Campbell threatened to harm Plaintiffs' business reputation, file knowingly false State Bar complaints, post defamatory online reviews, and otherwise interfere with Plaintiffs' professional standing unless Plaintiffs paid additional settlement funds beyond those owed under the parties' retainer agreement. Plaintiffs contend the posted Yelp review falsely accused them of mishandling Campbell's case, misrepresenting retainer terms, withholding settlement proceeds, and racially discriminating against Campbell and her family.

b. Motion

Before the Court

Now before the Court is Plaintiff's

motion for summary adjudication of two of the affirmative defenses asserted in Defendant Campbell's Answer to Plaintiffs' Complaint: (1) Defendant's Second Affirmative Defense (Truth/Substantial Truth); and (2) Defendant's Third Affirmative Defense (Opinion / Protected Consumer Commentary).

Motion for Summary

Adjudication

a. Legal

Standard

A party may also seek summary

adjudication of select causes of action, affirmative defenses, claims for damages, or issues of duty, which may be made by a standalone motion or as an alternative to a motion for summary judgment and proceeds in all procedural respects like a motion for summary judgment, but which must completely dispose of the challenged cause of action, affirmative defense, claim for damages, or issue of duty. (Code Civ. Proc., § 437c, subds. (f)(1)-(2), (t).)

A motion for summary adjudication

shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty. (Code Civ.

Proc., § 437c, subd. (f)(1).)

The moving party bears the initial burden of production to make prima facie showing no triable material fact issues. (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850 (Aguilar).) This burden on summary judgment or adjudication “is more properly one of persuasion rather than proof, since he must persuade the court that there is no material fact for a reasonable trier of fact to find, and not to prove any such fact to the satisfaction of the court itself as though it were sitting as the trier of fact.” (Id. at p. 850, fn. 11.) If the moving party meets this burden, the burden shifts to the opposing party to make a rebuttal prima facie showing that a triable issue of material fact exists. (Id. at p. 849.)

“[I]n ruling on motions for summary judgment courts are to “liberally construe the evidence in support of the party opposing summary judgment [or adjudication] and resolve doubts concerning the evidence in favor of that party.” [Citations].” (Cheal v. El Camino Hospital (2014) 223 Cal.App.4th 736, 760.)

Discussion

After review, and though unopposed, the Court determines that the moving papers present insufficient grounds for relief.

Specifically, under the Code of Civil Procedure, a motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty. (Code Civ. Proc., § 437c, subd. (f)(1).)

Here, the Second and Third Affirmative Defenses read:

SECOND
AFFIRMATIVE DEFENSE

(Truth
/ Substantial Truth)

2. Defendant alleges

that the statements referenced in the Complaint are true or substantially true, and therefore cannot constitute defamation or any other actionable claim.

THIRD

AFFIRMATIVE DEFENSE

(Opinion

/ Protected Consumer Commentary)

3. Defendant alleges

that the statements referenced in the Complaint constitute expressions of opinion, interpretation, and commentary based upon Defendant's personal experience as a consumer of legal services. Such statements are subjective evaluations and impressions that are not provably false statements of fact. Statements reflecting dissatisfaction with professional services, impressions of conduct, and recommendations regarding whether others should use such services constitute protected opinion and consumer commentary and therefore cannot form the basis of a defamation claim.

(Answer, pp. 2-3.)

However, as reflected in the notice

of motion, Plaintiffs seek summary adjudication of the applicability of the Second and Third Affirmative Defenses to two sets of statements supporting liability against Defendant Campbell in the Complaint, i.e., a fee misrepresentation statement and a withheld funds statement. (See Motion, 1:10-27; see also Complaint, ¶¶ 29-30 [above statements as well as statements regarding substandard legal representation and racial discrimination amounting to conduct supporting first cause of action for civil extortion], 36 [characterizing Yelp postings as libelous in support of second cause of action for libel per se.]) Otherwise stated, Plaintiffs' motion, if granted, would not dispose of the Second or Third Affirmative Defense in whole, just in part, as relates to the fee misrepresentation statement and withheld funds statement, but not as to the substandard representation or racial discrimination statement. Summary adjudication cannot be thus granted. (Code Civ. Proc., § 437c, subd. (f)(1).)

And critically, the moving party

bears the initial burden of production to make a prima facie showing of no triable issues of material fact. (Aguilar, supra, 25 Cal.4th at p. 850.) Here, the moving papers do not sufficiently clarify to this Court how

disposition on summary adjudication as to the fee misrepresentation statement and the withheld funds statement would fully resolve all questions related to the Second and Third Affirmative Defenses in Plaintiffs' favor, particularly, for example, where the alleged misrepresentations made by Defendant Campbell on Yelp vis-à-vis Plaintiffs involved representations that Plaintiffs had mishandled the underlying action, misrepresented retainer terms, wrongfully withheld settlement proceeds, and engaged in racial discrimination. (See, e.g., Complaint, ¶ 29.)

c. Conclusion

Plaintiffs McMurray Henriks, LLP,
and attorney Yana G. Henriks's motion for summary adjudication is accordingly
DENIED.

Plaintiffs McMurray Henriks, LLP,
and Yana G. Henriks is ordered to give notice.

Parties who intend to submit
on this tentative must send an email to the court at smcdept731@lacourt.org indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If the parties do not submit on the tentative, they should arrange to appear remotely.

DATED: September 22, 2026 _____

MARK C. KIM

Judge of the
Superior Court